

19STCV03514 19STCV03514

County: los-angeles

Division: Civil Law and Motion

Department: 617

Hearing date: 2026-07-01

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Case Number: 19STCV03514 Hearing Date: July 1, 2026 Dept: 617

Dept.

617

Date:

7-1-26

Case

#: 19STCV03514

Trial

Date: N/A

VACATE JUDGMENT

MOVING

PARTY: Plaintiff, Hossein Shahali

RESPONDING

PARTY: Defendants, Universal Protection Service, LP and Luisa Rodriguez

RELIEF

REQUESTED

Motion

to Vacate Judgment

SUMMARY

OF ACTION

Plaintiff

Hossein Shahali was formerly employed by Allied Universal and Universal Protection Service, LP. On February 1, 2019, Plaintiff filed a complaint against Allied Universal, Universal Protection Service, Luisa Rodriguez, and Alexis Castillo asserting multiple causes of action under the Fair Employment and Housing Act, among other claims. On June 5, 2019, the Court granted Universal Protection Service's motion to compel arbitration. An award was issued in favor of Universal Protection Service and Rodriguez and was confirmed on January 11, 2022. Judgment was subsequently entered on March 8, 2022.

RULING: Denied.

Plaintiff

moves to vacate the March 8, 2022 judgment on grounds of extrinsic fraud, citing purportedly fabricated documents and technical irregularities in the arbitration. Defendants Universal Protection Service and Rodriguez oppose the motion, arguing that the motion is not based on extrinsic fraud, is not supported by competent evidence, and attempts to improperly relitigate previously decided issues. Plaintiff's motion is denied because he relies on purely alleged intrinsic rather than extrinsic fraud.

"A

motion to vacate a judgment for extrinsic fraud is not governed by any statutory time limit, but rather is addressed to the court's 'inherent equity power' to grant relief from a judgment procured by extrinsic fraud." (Dept. of Industrial Relations v. Davis Moreno Constr., Inc. (2011) 193 Cal.App.4th 560, 570.) "Extrinsic fraud occurs when a party is deprived of the opportunity to present his claim or defense to the court; where he was kept ignorant or, other than from his own negligence, fraudulently prevented from fully participating in the proceeding. [Citation.] Examples of extrinsic fraud are: ... failure to give notice of the action to the other party, and convincing the other party not to obtain counsel because the matter will not proceed (and then it does proceed). [Citation.] The essence of extrinsic fraud is one party's preventing the other from having his day in court." (Id. at p. 570.)

Plaintiff

solely relies on alleged intrinsic fraud to vacate the judgment. Plaintiff points to purportedly fabricated court documents and irregularities in the

arbitration proceeding such as pausing of recording of the hearing, omissions in the hearing transcript, and the arbitrator's untimely issuance of the award. [See Plaintiff's Exs. 1-22.] Plaintiff presents no evidence that he was prevented from participating in the hearings before the Court or the arbitrator. To the contrary, the evidence shows that Plaintiff participated in both proceedings and presented similar arguments and concerns he now brings. [See, e.g., Green Decl. ¶¶ 9-12, 14-16, Exs. C-E, G-I: final award, arbitrator's denial of Plaintiff's motion for reconsideration, Plaintiff's filings in this Court, and confirmation of award.] There is thus no basis to vacate the Court's judgment on grounds of extrinsic fraud and Plaintiff's motion is denied.

Plaintiff
to give notice.